



Placement and Residential Licensing Unit

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Case Number: 029147

Date of Incident: 4/19/2025

Date Received: 4/21/2025

Facility Name: Yellow Rock Behavioral Health

Facility Number: 203

Incident Type: Licensing

Report Description:

[REDACTED] On 4/19/25 at approx. 1920, during hygiene time on Obsidian pod, staff reported that he thought he saw [REDACTED] go into the first bathroom and then one of the staff members went on brief break and another staff member was on the unit. When the first staff member came back from break, they realized that the count was off and knocked on the bathroom door and [REDACTED] answered the door and stated no one was with him. Staff attempted to again locate [REDACTED] resident and stated to [REDACTED] that they needed to open the bathroom door. Then [REDACTED] opened the door and [REDACTED] was sitting on the toilet with his shorts down. [REDACTED] stated that he forgot to lock the door. [REDACTED] denied any sexual behavior and [REDACTED] stated that [REDACTED] walked in the bathroom and ?verbally forced? him to perform oral sex on [REDACTED]. [REDACTED] was moved to a single room in a different pod, both residents were placed on SAO precautions, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Interim Action Narrative:

[REDACTED] Narrative:

Licensing Narrative: 4/22/2025 - Licensing specialist Jarred Parnell reviewed the report and conducted a visit at the facility. Video footage was reviewed for the report. 4/19/2025 ? 19:09 - 19:19 Residents can be seen at a tables in the common area. ■■■ can be seen near a doorway at the top of the screen. ■■■ walks down to where ■■■ is seated and whispers something to the resident. ■■■. can be seen gesturing towards the bathroom and then proceeds to walk to the bathroom. ■■■. can be seen standing and walking into the bathroom just after ■■■. There are two staff present in the room. A male staff member is seated at a table in the top of the room. The female staff member then walks around the table at the top of the room, ■■■. entered the bathroom when she was just around the corner of the bathroom. Staff notice the residents count is off while conducted a Q15 check at 19:17. A nurse enters the room to assist staff because they will need to check in the bathroom the boys are in. Both residents are in the bathroom from 19:10 ? 19:19 At 19:19 staff open the door and ■■■ exits the bathroom. ■■■. can be seen sitting on the toilet just inside the bathroom. Staff close the door and begin processing with ■■■. Licensing specialist observed both boys which are now on different units. The boys were observed in different classrooms and are now housed on separate units. 4/30/2025 - Licensing Specialist staffed the case with C. Vardell. Licensing Specialist will reach out the facility in regards to the residents using the bathroom and inquire if the bathroom doors are supposed to be locked. Licensing specialist requested the facility send documentation of the policy for employees when residents use the bathroom and during hygiene time. Licensing specialist staffed concerns with supervision with supervisor C. Vardell and whether or not staff met the standards for supervision during the incident. 5/5/2025 - Licensing specialist received Q-15 documentation for the date of the incident 4/9/2025 and The facility policy for observations during waking hours. The documentation has been uploaded to ELS. Licensing specialist reviewed the policy which states the procedure for observations is " a minimum level of observation for all residents". Staff were not aware that ■■■ entered the bathroom shortly after ■■■ had entered the bathroom. Staff were not aware the residents were in the bathroom for 9 minutes. Staff did not provide the supervision necessary to ensure safety and well-being for the residents. Staff did not take into account the surrounding circumstances in regards to the use of the bathroom. The facility will be cited for standard 907.2. Childcare staff shall be responsible for providing the level of supervision, care, and treatment that is necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards, and risks.



Division of Child Care & Early Childhood Education

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.508.8910 F: 501.683.6060 TDD: 501.682.1550

521 Visit Compliance Report

Licensee: Yellow Rock Behavioral Health

Facility Number: 203

Licensee Address: 2601 HABBERTON RD
SPRINGDALE AR 72764

Licensing Specialist: Jarred Parnell

Person In Charge:

Record Visit Date: 4/22/2025

Home Visit Date: 4/22/2025

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulation Number: 900.907.2

Regulation Description: Child caring staff shall be responsible for providing the level of supervision, care, and treatment necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards and risks.

Finding Description: The facility staff involved in this incident failed to follow the facility protocol of keeping the bathroom doors locked. The facility staff then failed to provide adequate supervision to the residents on the unit resulting in two residents entering the bathroom undetected for a period of 9 minutes before being discovered.

Action Due Date: 2025-05-23

Action Due Description: Please ensure all staff involved in this incident are retrained on appropriate supervision.

Comply Date:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Narrative:

A visit was conducted at Yellow Rock Behavioral Health -report 029147. Licensing received a provider self-report from staff at Yellow Rock Behavioral Health on 4/21/2025 in which a resident alleged he had unwanted sexual contact with another resident in the restroom of the unit where they are staying.

Minimum standards reviewed for the report:

907.2 Childcare staff shall be responsible for providing the level of supervision, care, and treatment that is necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards, and risks.

907.3 Staff to child ratio shall be at least one to six (1:6) during waking hours and one to eight (1:8) during sleeping hours.

Video footage was reviewed for the report.

4/19/2025 – 19:09 - 19:19

Residents can be seen at a table in the common area. Resident 1 can be seen near a doorway at the top of the camera view. Resident 1 walks down to where Resident 2 is seated at a table on the left of the room, Resident 1 leans in and appears to speak to Resident 2. Resident 1 can be seen gesturing towards the bathroom and then proceeds to walk to the bathroom. Resident 2 can be seen standing from the table he's seated at and walking into the bathroom just after Resident 1. There are two staff present in the room. Staff 1 is seated at a table at the top of the room. Staff 2 is standing near the table and then walks around the table at the top of the room, Resident 2 enters the bathroom when staff 2 was just around the corner of the bathroom. Staff notice the residents count is off while conducting a Q15 check at 19:17. Staff 3 enters the room to assist because they will need to check in the bathroom. Both residents are in the bathroom from 19:10 – 19:19. At 19:19 staff open the door and Resident 2 exits the bathroom. Resident 1 can be seen sitting on the toilet just inside the bathroom. Staff close the door and begin processing with Resident 2.

The licensing specialist observed both residents during the visit. The boys were observed in different classrooms and are now housed in separate units.

The residents' bathrooms are supposed to be locked and opened upon request, by the staff, when residents need to use the bathroom. Resident 1 entered the bathroom without needing staff to unlock the bathroom. Staff were not aware that resident 2 entered the bathroom shortly after resident 1 had entered the bathroom. Staff were not aware the residents were in the bathroom for 9 minutes. Staff did not provide the supervision necessary to ensure the safety and well-being of the residents. Staff did not consider the surrounding circumstances in regard to the use of the bathroom.

The facility is being cited for standard 907.2 Childcare staff shall be responsible for providing the level of supervision, care, and treatment that is necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards, and risks.

***** Pursuant to A.C.A. § 9-24-406(e)(3-4): If you believe that the Department's notice of noncompliance is in error, you may ask for reconsideration. The request for reconsideration must be in writing and delivered to the Department by certified mail within twenty (20) business days of receipt of the notice of noncompliance. The request must specify the parts of the notice that are alleged to be in error, explain why you believe those parts are in error, and include documentation to support the allegation of error. Once received the Department shall issue a decision on your request within twenty (20) days after receipt of the request.

Provider Comments:

CCL Staff Signature :

Date: 4/22/2025

Provider Signature :

Date: 4/22/2025